

Niho Scottish Garden Residents Welfare Association v. U.P. Electricity Regulatory Commission

High Court of Judicature at Allahabad · Division Bench · 17 March 2023 · WRIT - C No. 63256 of 2017 · **Writ dismissed for want of prosecution; Clause 7.10 view only prima facie.**

HEADNOTE

On 3 January 2018 Tarun Agarwala and Saumitra Dayal Singh, JJ. recorded a prima facie view that the controversy could not be considered by the Ombudsman under Clause 7.10 of the Electricity Supply Code, 2005, and called for a counter affidavit. The writ was later dismissed for want of prosecution on 17 March 2023 when none appeared to press it; any interim order stood discharged. The Clause 7.10 point was never finally decided.

FACTUAL SUMMARY

Niho Scottish Garden Residents Welfare Association petitioned the Allahabad High Court against the U.P. Electricity Regulatory Commission and three others. On 3 January 2018 a Division Bench recorded a prima facie view that the controversy could not be considered by the Ombudsman under Clause 7.10 of the Electricity Supply Code, 2005, directed respondents 1 and 2 to file a counter affidavit, and issued notice to respondent 4. After an adjournment in January 2023, none appeared on 17 March 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Ombudsman jurisdiction

HOLDING

Prima facie, the controversy could not be considered by the Ombudsman under Clause 7.10 of the Electricity Supply Code, 2005. The writ was later dismissed for want of prosecution without a merits ruling; any interim order stood discharged. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONTROVERSY WAS OUTSIDE THE OMBUDSMAN'S CLAUSE 7.10 JURISDICTION

The 3 January 2018 observation was only prima facie; the writ was dismissed for want of prosecution without deciding that question or the underlying dispute. ¶ 1